

		[Motion Type]
01346315	Hill - Probate	TENTATIVE RULING Case: Hill - Probate 01346315 Calendar No.: 5 Date: 07/15/2026 MOTIONS TO COMPEL FURTHER RESPONSES TO DISCOVERY AND MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED (ROAs 464, 465, 466) Maurcus Washington brings three discovery motions: a motion to deem admitted request for admissions; a motion to compel responses to form interrogatories; and a motion to compel responses to requests for production of documents. <u>Re Service of Discovery</u> The evidence before the court is that Mr. Washington's counsel propounded firsts sets of requests for admission, form interrogatories, and requests for production of documents on Beatriz Johnson on 2/25/26 via electronic service. (Friedman Decls., ¶¶ 3-4 and Exs. A and B.) Ms. Johnson is a self-represented party. Her attorney substituted out of the case on 5/6/25 (ROA 128), nearly nine months before the discovery was served. Self-represented parties "are to be served by non-electronic methods unless they affirmatively consent to electronic service." (Cal. Rules of Court., Rule 2.251(c)(3)(B).) Express consent to receive electronic service may be given in one of two ways: (1) by filing and serving a notice of consent, or (2) by affirming consent through an electronic filing service provider. (Code Civ. Proc. § 1010.6(c)(3).) In his moving papers, Mr. Washington states that Ms. Johnson "revoked" her consent to electronic service in the process of meeting and conferring over the subject discovery. However, the court's records do not reflect that Ms. Johnson ever expressly consented to electronic service.